

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 6, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 26CV00828

WELLS FARGO v. ROGERS

(UNOPPOSED) PLAINTIFF’S MOTION FOR JUDGMENT ON THE PLEADINGS

The motion is denied without prejudice. Plaintiff served it to the wrong address for defendant (“77725 W. Zayante Rd., Unit A, Felton CA” instead of “7725 W. Zayante Rd., Unit A, Felton CA”). Plaintiff may re-serve and re-file its motion.

No. 25CV01247

STAPLETON v. TAIGMAN, et al.

DEFENDANTS CHRISTINE THORNE, CHARLES E. THORNE III DBA QUALITY HOMES’ DEMURRER TO AND MOTION TO STRIKE PLAINTIFF’S THIRD AMENDED COMPLAINT

The demurrer is overruled. Defendants are ordered to file answers no later than August 21, 2026.

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law”